

Guide to Small Claims via Money Claims Online

Disclaimer

This FAQ is provided for general informational purposes only and is not legal advice. It is intended to give an overview of the Search Only Terms Contract: for Access and Use of Website (the “Contract”), but it does not replace or modify the Contract itself.

The Contract is the legally binding document governing access to and use of Website Content. In the event of any inconsistency between this FAQ and the Contract, the Contract shall prevail.

Application and enforcement of the Contract will depend on the specific circumstances of each case, including the nature of the Accessing Party, the method of access, and the relevant jurisdiction. Enforcement options, including litigation, may not be appropriate in all situations and should be considered on a case-by-case basis.

Publishers should seek independent legal advice where necessary, particularly in relation to implementation, enforcement strategy, and cross-border issues.

Nothing in this FAQ limits or waives any rights or remedies available to the Website Operator under the Contract or applicable law.

For the full terms, see the Contract.

How do I make a claim?

Short Answer:

The Contract provides a structured debt recovery process, including pre-action steps and the ability to issue claims in the County Court (including via Money Claim Online for smaller claims).

Longer explanation:

Under the Search Only Terms Contract (“SOTC”) we have set out a straightforward debt-recovery framework designed to enable publishers, particularly small publishers, to bring claims via MCOL (Money Claims Online). The SOTC introduces an “Access Fee” for website access, all entrants to the website are subject to this fee regime however; this Access Fee is expressly waived for licensed uses, which is search indexing and personal, non-commercial use.

Those who enter the website for other purposes are subject to the entry fee. Under the terms and conditions, the payment of the entry fee does not mean that those who enter gain any rights to the content – those rights are expressly reserved for the Website Operator and can be protected separately.

Set out below is a framework for a simple debt claim that is to be brought via Money Claim Online for claims that are less than 10,000 pounds in value. Even these claims can be pursued using a variety of procedural steps in the County Court and it is outside the scope of this note to explain all procedural rules.

Small Claims

This is a track in the County Court. The County Court has three tracks that cases are allocated to: small, fast and multi. They each have their own rules that are designed to help resolve a dispute taking account the value, nature and complexity of the claim being made. The Small Claims track by its design will have the most user-friendly rules so that claims can be brought and defended without the necessity of legal assistance. The benefits of being in small claims will be explained further below; however, one of the benefits is that the costs of litigation are limited in Small Claims unless a party has acted unreasonably. This means that even if a Claimant loses the claim

the Defendant is not usually entitled to their recoverable costs of litigation. Therefore, many of the procedures that apply to the other tracks are not applicable to Small Claims to simplify the process.

The small claims procedure is designed for simple claims of a monetary value up to 10,000 pounds (there are exceptions, but they are not material to these discussions). If the claim is within the 10,000 pound limit but the issues are otherwise “complex” then they may be allocated to a different track of the County Court at the discretion of a District Judge. In this case we will endeavour to keep the claim to a simple, debt recovery claim that is suitable for Small Claims and may be pursued using the online money claims procedure.

Pre Action

The Pre-Action Protocol for Debt Claims ('the Debt Protocol') applies where a business (including a sole trader or public body) is claiming a debt from an individual (including a sole trader). Where the Defendant is a company or other incorporated entity rather than an individual, the Debt Protocol does not strictly apply; however, the court will still expect the parties to have acted reasonably and in the spirit of pre-action correspondence (see CPR r.44.2 and the Practice Direction on Pre-Action Conduct and Protocols). In either case, non-compliance with the relevant protocol may result in cost sanctions at the court's discretion.

Under the Debt Protocol, the Letter of Claim must be in the prescribed form and must enclose specific documents, including: (1) an Information Sheet; (2) a Reply Form; and (3) a Financial Statement form. The Defendant must be given at least 30 days to respond. These requirements are mandatory where the Debt Protocol applies.

There are certain protocols that have been implemented designed to inform a potential defendant at an early stage of the basis for, the value of and the reasons why a claim is being contemplated against them. Such an early notification is set out in the Letter Before Claim or Action and puts the potential Defendant on notice that a claim is being contemplated against them for the reasons given. This enables the Defendant to consider the claim, admit the claim or set forth any reasons why it should not be held responsible for it at an early stage. In that way any matters in dispute can be crystallized or settled before involving the court process.

To begin the process, it is advisable that an invoice(s) is/are sent to the potential defendant for the amounts that are owed under the SOTC. This will form the basis for the total amount due for the Letter Before Claim which also are found in the Particulars of Claim/Statement of Case that will be filed with the Small Claims court if the claim is not settled at the Letter Before Claim stage.

For each claim there are certain facts that will be required before the Letter Before Claim can be finalised and sent. You, as the Claimant will need to know: Who the Defendant(s) is/are; what they have done and why it is that you have a claim against them. You may also wish to consider what information that you might want from the defendant to finalise your claim. If you can determine from the SOTC what the final amount that is owing to you is and therefore can calculate any interest that is to be recovered – you will be able to pursue the claim using the online money claims procedure.

A draft Letter Before Claim particularising a debt claim is appended to this note. You will need to input the relevant information including any documentation (Terms and Conditions and the Invoice(s) and any other documentation needed to support the total amount due) that you are relying upon in support of your claim and then send it to the Defendants. Where the Pre-Action Protocol for Debt Claims applies, the Defendant must be given a minimum of 30 days to respond. Where the Protocol does not strictly apply (for example, where the Defendant is a company), best practice is to allow at least 14 days, and the court may expect a longer period depending on the complexity of the claim.

Evidence Gathering

Before commencing the pre-action process, it is important to gather and organise evidence demonstrating that Access Events occurred, that one or more Products were accessed outside the permitted licence, and that the resulting contractual sums are due. The evidential model under the Contract is intended to be practical and does not require proof of internal processes (such as AI training). Instead, it relies on a combination of technical records, publicly available materials, and reasonable inference based on consistent patterns of access and reuse.

At a minimum, a basic claim should include the following core evidence, organised clearly (for example, in tabbed form):

- (1) Tab 1 – Screenshot from Wayback Machine dated [date of Contract integration in Website's robots.txt file]
- (2) Tab 2 – Search Only Terms Contract for Access and Use of Website [version] dated [date of version]
- (3) Tab 3 – [Website Name] Terms and Conditions dated [insert]
- (4) Tab 4 – Invoices [insert name and date of invoice(s)]
- (5) Tab 5 – Screenshot of the Product as shown on the Website on [insert date]
- (6) Tab 6 – Screenshot of response/output dated [insert date]
- (7) Tab 7 – Email from [insert your name] to [insert company name] notifying the Company of its obligation to pay, dated [insert date]
- (8) Tab 8 – Evidence that the Company refused to pay the invoices (only where applicable)
- (9) Tab X – Additional Evidence related to the Unlicensed Access Event (optional, where available)

Invoices

Invoices form a key part of the claim and should be prepared carefully. As a minimum, each invoice should: (i) be issued in the correct legal name of the claimant (e.g. the company bringing the claim); (ii) clearly identify the recipient (the Accessing Party); (iii) be dated; (iv) include a unique invoice number; (v) specify the number of Products accessed and the corresponding Access Fees; (vi) set out the total amount due; and (vii) include any applicable VAT or tax information. The invoice should clearly link the sums claimed to the contractual basis for the charge. These invoices will form the foundation of the debt claim and should be consistent with the evidence relied upon.

In addition, and where technically feasible, further evidence may be included to demonstrate when and how the Access Event took place. In practice, there are two main evidential routes:

- Preferred approach: If Website Content appears in AI outputs, search results, or summaries, a screenshot of that output should be captured and relied upon. This is the clearest and most straightforward evidence of downstream use.
- More complex approach (only where available): Website logs may show IP addresses and user-agent identifiers indicating that a crawler has accessed the Website. This should only be used where (i) logs are available, and (ii) the IP address and user-agent can reasonably be linked to a relevant AI company or crawler. If this cannot be clearly established, this route should not be relied upon.

Evidence collected should be focused, proportionate, and clearly linked to specific Products and Access Events. In practice, a small number of strong, clearly documented examples are likely to be more effective than large volumes of complex or ambiguous technical data.

If further guidance is required on structuring the claim, drafting the Letter Before Claim, or presenting the evidence, reference should be made to the pro-forma Letter Before Claim annexed at [X].

Court Proceedings

Issuing the Claim Form

If the matter is not resolved pre-action proceedings may be issued in the County Court and where the total value of the claim does not exceed £10,000, this may be done using the Money Claim Online (MCOL) service or, in the alternative, by filling in and filing the appropriate CPR Part 7 claim form in the local County Court – this is known as “issuing the claim”. Higher-value or complex claims may proceed on the Fast Track or Multi Track, but these tracks are more procedurally complex and will generally require legal assistance. A fee will also be payable for the court to “issue” the claim form and this will be dependent on the value of the claim. It is always wise to check the current fees that are set out at EX 50 Court Fees (currently 455 pounds for money claims between 5000 and 10,000 pounds). The UK Gov website for pursuing money claims is a key resource: <https://www.gov.uk/make-court-claim-for-money/make-claim>. This provides a step by step guide on how to issue a claim form and what to expect from the County Court Small Claims proceedings to and including trial.

A Claim Form for MCOL can be found using the following link [N1SDT Claim form](#).

A Claim Form for claims over £10,000 can be found using the following link [N1 Claim form \(CPR Part 7\)](#).

You will need to know certain basic information before you can proceed to use the electronic Money Claim Online service – the rules that are likely relevant to this claim are:

1. The only remedy that is being sought is a specified amount of money (less than 10,000 pounds excluding interest and costs claimed and in pounds sterling).
2. The Claimant's address for service is within the UK.
3. The Claim is against a single defendant or a maximum of two defendants.
4. The Defendant's address for service is within England and Wales.
5. You will need to fill in a concise Particulars of Claim/Statement of Case (less than 1080 characters including spaces) setting out the nature and extent of the claim and why you are claiming against the defendant.
6. You will need an interest calculation including a daily rate of interest.
7. You will need to pay the relevant fee based on the value of the claim usually by way of debit or credit card.

Service of the Claim Form

At this point the claim has been issued but has not yet been “served” on the Defendant and so they will not know that a claim has been started. You can elect to serve the claim yourself but must request that the Court provide you with the documents that you will need to serve. If you do this then you will need to file a form to confirm when and how you have served the papers on the Defendant. Otherwise, the Court will serve the Claim Form and any documents in support as well as a Response Pack on the Defendant at the address for service within England and Wales that has been given for their address for service.

The Defendant will then have 14 days from the date of service to file an Acknowledgement of Service form which will acknowledge that they have received the form and inform of their intentions including whether the Defendant wishes to admit or defend the claim. The Defendant may wish to serve a Defence at the time of the Acknowledgement of Service or, if not at that time,

then they must serve the Defence within 28 days from the date they were served with the Particulars of Claim.

If the Defendant files a Defence, the claim will proceed within the court process. If the Defendant does not respond or does not defend the claim in time, then it is open for you to apply for a judgment in default – a form that confirms that the defendant has been served with the proceedings but has not responded or responded within the times required. A default judgment enables enforcement proceedings to be implemented against the defendant.

In a MCOL claim for a specified debt, a request for judgment in default may be made online and the judgment will ordinarily be entered by a court officer without the need for a hearing (CPR r.12.4(1)). However, a Defendant may subsequently apply to set aside a default judgment if they satisfy the court that there is a real prospect of successfully defending the claim, or that there is some other good reason for the judgment to be set aside (CPR r.13.3). Claimants should be aware that default judgment does not guarantee final recovery — it is the first step in enforcement, not the last.

Directions Questionnaire

Once the Defence has been filed, the parties will receive a Directions Questionnaire from the court. The purpose of the questionnaire is to evaluate the factors surrounding the complexity of the claim so that it can be allocated to a track by a District Judge. For this reason, it is important to keep the claim as simple as possible to have it allocated to the Small Claims track.

Mediation

Mandatory mediation applies automatically to all defended Small Claims Track cases where the claim value does not exceed £10,000. Parties do not need to consent to mediation — it is an automatic and compulsory step in the process. Once the case has been allocated to the Small Claims Track, the court will refer the matter to the HMCTS Small Claims Mediation Service. The parties will be contacted by HMCTS to arrange a mediation appointment, which is a telephone-based session typically lasting up to one hour and conducted by a trained HMCTS mediator.

Mediation is confidential: nothing said during the mediation may be referred to at any subsequent hearing. If the mediation is successful and the parties reach a settlement, a settlement agreement is drawn up and the court claim is stayed. Either party may apply to lift the stay if the settlement terms are not complied with.

If a party fails to engage with the mandatory mediation process without reasonable excuse, the court may take this into account when exercising its discretion on costs (CPR r.27.14(2)(g)), even within the Small Claims Track where costs are generally not recoverable.

Standard Directions

If the matter does not settle through mediation, the claim will proceed pursuant to directions given by the court. The court will look at the time estimates provided in the Directions Questionnaire and the nature of the claims in the Particulars of Claim and defence and will provide a hearing date giving at least 21 days notice, though in practice hearing dates are typically listed several weeks or months in advance depending on court availability. Directions for the hearing will be given: Standard directions usually comprise a date and time listed for the hearing and for the parties to file and serve all of the documents that they will be relying upon at least 14 days prior to the hearing. This will include the Letter Before Claim and any reply to it – underlining the importance of these documents. There is also usually a prohibition on any expert evidence to be adduced except with the approval of the court.

Special Directions

The court retains discretion to add to the directions and may even decide to dispose of the matter without a hearing. Accordingly, the statements of case and directions questionnaires are important because the dispute may be decided upon by the court on the documents alone. Special Directions may include:

A direction for a party to further clarify their statement of case.

A direction that each of the witnesses that are to give evidence at the hearing file and serve Witness Statements setting out their evidence signed in each case with a statement of truth.

A direction that Expert evidence on a particular issue be allowed – usually an expert that is to be instructed jointly and to produce an expert's report for the benefit of the court. The fee limited for such an expert is 750 pounds.

Hearing

Usually half a day is allocated (about 2.5 hours).

Small claims will generally be held in public. The hearing may be held in the Judges room or in court.

All communications between a party and the court must be disclosed and written communications must be copied to all other parties.

Small claims hearings will be recorded and transcripts can be obtained on payment of a transcriber's fee.

Strict rules of evidence do not apply to small claims. Judges will control the procedure. The court need not take evidence on oath and may limit cross examination. Documents signed with a statement of truth can be used as evidence in the hearing (even if a party does not appear).

The court must provide reasons for its decision. Judges may give their judgment orally as briefly and as simply as the nature of the case allows. Where a judge decides the case without a hearing, he will prepare a note of his reasons and send a copy to each party.

Recoverable Costs

These are usually limited to the amounts that you have paid out in court and other fees (for example if an expert has been involved in a claim). There is provision for additional costs to be awarded if a party has acted unreasonably in all the circumstances such as for example not complying with mediation or other Alternative Dispute Resolution.

Appeals

These will depend on the judge that has heard the case. Usually from a District Judge to a Circuit Judge. Permission to appeal is required and should first be sought orally from the District Judge at the conclusion of the hearing. If permission is refused or not sought at the hearing, the Appellant must file an Appellant's Notice ([N164 - Appellant's notice \(Small Claims Track only\)](#)) at the relevant County Court hearing centre within 21 days of the date of the decision being appealed. Strict time limits apply.

Enforcement

Once judgment has been obtained, the Claimant can demand that the monies are paid by the defendant in accordance with the order of the court failing which enforcement proceedings can be progressed. See section *Enforce a Judgment* in the *Make a Court Claim for Money* - referred to above.

Potential Defendants and their addresses

Company	Address	UK Company Number (if applicable)	Crawlers often associated with the Company
Amazon.com, Inc.	410 Terry Avenue North Seattle Washington 98109	N/A	Amazonbot Amzn-SearchBot Amzn-User
Apple Inc.	One Apple Park Way Cupertino California 95014	N/A	Applebot Applebot-Extended
Apple (UK) Limited	280 Bishopsgate London United Kingdom EC2M 4AG	01591116	
Alphabet Inc. Google LLC (Google Search provider to users based in UK)	1600 Amphitheatre Parkway Mountain View California 94043	N/A	Googlebot Google-Extended Google-CloudVertexBot
Google UK Limited (employer of Google's personnel in the UK)	1 St. Giles High Street London United Kingdom WC2H 8AG	03977902	
Google Ireland Limited (service provider for Google's Search Ads 360 product and operates Google Ads for business customers)	Gordon House 4 Barrow Street Dublin D04 E5W5 Ireland		
Google Commerce Limited (service provider for Google Ads where the customer has chosen 'eligible non-business use' as the purpose of use for its account)	Gordon House 4 Barrow Street Dublin D04 E5W5 Ireland		
Meta Platforms, Inc.	1 Hacker Way	N/A	Meta-WebIndexer

Company	Address	UK Company Number (if applicable)	Crawlers often associated with the Company
Meta Platforms Technologies UK Limited	Menlo Park California 94025 10 Brock Street Regent's Place London United Kingdom NW1 3FG	13792358	Meta-ExternalAds Meta-ExternalAgent Meta-External Fetcher FacebookBot
ByteDance Limited	43 N 3 rd Ring W Road Beijing China	N/A	Bytespider
ByteDance Technology Co., Limited	71-75 Shelton Street Covent Garden London United Kingdom WC2H 9JQ	16182979	
X Corp.	Building 2, Hyperloop Plaza Bastrop Texas 78602 United States		Twitterbot
Twitter UK Ltd	1 st Floor, 20 Air Street London W1B 5AN	07653064	
OpenAI, Inc.	3180 18 th Street Suite 100 San Francisco California 94110	N/A	OAI-SearchBot OAI-AdsBot GPTBot
OpenAI UK Limited	Suite 1, 7 th Floor, 50 Broadway London United Kingdom SW1H 0BL	14367667	ChatGPT-User
Anthropic PBC	548 Market Street San Francisco California 94104	N/A	ClaudeBot
Anthropic Limited	9 th Floor, 107 Cheapside London United Kingdom EC2V 6DN	14604577	Claude-Web Claude-User Claude-SearchBot anthropic-ai
Perplexity AI, Inc.	Suite 900, 115 Sansome Street San Francisco California 94105		PerplexityBot Perplexity-User

Company	Address	UK Company Number (if applicable)	Crawlers often associated with the Company
Perplexity AI Limited	C/O Cogency Global (UK) Limited 6 Lloyds Avenue, Unit 4cl London United Kingdom EC3N 3AX	15470377	
Cohere, Inc.	Suite 200, 171 John Street Toronto Ontario Canada	N/A	cohere-ai
Cohere UK, Limited	4 th Floor, 51 Great Marlborough Street London United Kingdom W1F 7JT	13987418	
Yandex LLC	16 Leo Tolstoy Street Moscow Russia	N/A	YandexBot YandexAdditional YandexAdditionalBot
Webz.io, Inc.	7 Metsada Street Bnei Brak 5126112 Israel	N/A	omgili omgilibot

MCOL (Money Claims Online) may only be used where the Defendant's address for service is within England and Wales. Where a Defendant does not have a registered address or a served address within England and Wales, MCOL is not available and proceedings must be issued using a paper claim form at the County Court specified above in this document. Additionally, serving proceedings on a company incorporated outside England and Wales may require permission of the court to serve out of the jurisdiction under CPR Part 6 Section IV, unless the company has submitted to jurisdiction or can be served at a UK address. Claimants should identify the appropriate defendant entity (preferably the UK-registered subsidiary, where one exists) before issuing proceedings.

How much would it cost to bring a county court claim, even if Google didn't contest it?

To bring a claim on the Small Claims Track via Money Claim Online ("**MCOL**"), as contemplated by the Search Only Terms Contract, the value of the claim must not exceed £10,000 (see Civil Procedure Rules ("**CPR**") Part 27 and Practice Direction ("**PD**") 7C).

Where the aggregated value of the claim exceeds £10,000, proceedings must instead be issued in the County Court. Claims valued between £10,000 and £25,000 will ordinarily be allocated to the fast track, while claims exceeding £25,000 (and up to £100,000) will be allocated to the multi-track.

Eligibility to use [MCOL](#) is also subject to jurisdictional and procedural requirements. In particular, the address for service must be in England or Wales. As a result, MCOL may not be the

appropriate route where the defendant is outside the jurisdiction. In addition, MCOL claims are restricted to a maximum of two claimants and two defendants.

The [court issue fee is generally 5% of the value](#) of the claim, including any interest claimed, rounded down to the nearest penny. By way of example, a claim for £3,000 would attract a court fee of £150 (see the table below).

Claim amount	Fees
Up to £300	£35
£300.01 to £500	£50
£500.01 to £1,000	£70
£1,000.01 to £1,500	£80
£1,500.01 to £3,000	£115
£3,000.01 to £5,000	£205
£5,000.01 to £10,000	£455

[You can pay](#) by credit or debit card online, or by postal order if using a paper claim form.